

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension Filed by:**

JONATHAN SHERIFF, Moving Party,

v.

LOS ANGELES UNIFIED SCHOOL DISTRICT, Responding Party.

OAH No. 2025050331

**ORDER DENYING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

(Ed. Code, § 44939, subd. (c)(4))

Administrative Law Judge Karen Reichmann, State of California, Office of Administrative Hearings, heard this matter on May 30, 2025, by videoconference.

Attorney Daniel J. Kolodziej represented Jonathan Sheriff, the moving party, who was present.

Attorney Kelly Kim represented the Los Angeles Unified School District (District).

Procedural History

A statement of charges was filed and served against Jonathan Sheriff, pursuant to Education Code sections 44932 and 44939, alleging several causes for dismissal, including immoral conduct and willful refusal to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations of the School District (willful refusal). The District placed Sheriff on immediate suspension without pay, pursuant to Education Code section 44939, based upon the allegations of immoral conduct and willful refusal.

Sheriff filed a timely motion for immediate reversal of his suspension without pay, pursuant to Education Code section 44939, subdivision (c)(1). He argues that the District has not alleged a sufficient basis to place him on immediate unpaid status because the factual allegations in the statement of charges do not establish that he engaged in immoral conduct or willful refusal. The District opposes the motion.

Discussion

Education Code section 44939, subdivision (b), provides that a school district may immediately suspend a permanent certificated employee who has been charged “with immoral conduct, conviction of a felony or of any crime involving moral turpitude, with incompetency due to mental disability, with willful refusal to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations of the School District, or with violation of [Education Code] section 51530.”

Immoral conduct is defined as conduct that is “hostile to the welfare of the general public and contrary to good morals” and includes conduct “inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of

respectable members of the community." (*Board of Education v. Weiland* (1960) 197 Cal.App.2d 808, 811.)

Pursuant to Education Code section 44939, subdivision (c)(1), "review of a motion filed pursuant to this section shall be limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section."

Sheriff was employed as a secondary teacher for the District. The statement of charges alleges, in part, that between August 2022 and December 2023, while working at two different schools, Sheriff: used a racial slur in class, made inappropriate and sexually suggestive statements towards female students and staff, and engaged in unwelcome touching of female staff. The District alleges that these actions constituted immoral conduct and, because they violated District policies and oral and written directives, also constituted willful refusal. Sheriff contends that the conduct, as alleged and without further context or evidence of improper intent, does not rise to the level of immoral conduct. Sheriff also contends that mere failure to adhere to vague District policies cannot constitute willful refusal.

The written submissions and oral argument of the parties have been considered. Based upon a review of the statement of charges, the District has alleged facts sufficient to constitute a basis for immediate suspension under Education Code section 44939, subdivision (b), on the basis of immoral conduct and willful refusal.

ORDER

Jonathan Sheriff's motion for immediate reversal of suspension is denied. The District's immediate suspension is upheld.

DATE: 06/11/2025

Karen Reichmann

KAREN REICHMANN

Administrative Law Judge

Office of Administrative Hearings